

Stereo. HCJDA-38
JUDGMENT SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Crl. Revision No.38401 of 2024
(Mst. Rubina Kauser versus Addl. Sessions Judge etc.)

JUDGMENT

Date of hearing	18.06.2025
Petitioner by	Mr. Abdul Karim Sheikh, Advocate
State by	Mr. Muhammad Asad Tehrim Baig, Deputy Prosecutor General
Respondents by	Mr. Shahid Ahmad Jatoi, Advocate

Syed Shahbaz Ali Rizvi, J. Through this Crl. Revision, the petitioner/complainant assails order dated 16.05.2024 passed by the learned Addl. Sessions Judge, Faisalabad whereby, private complaint filed by the petitioner titled as Rubina Kausar v. Nazir Ahmad and others was dismissed.

2. Arguments heard. Available record perused.
3. It has straightaway been observed that the petitioner/complainant filed the subject private complaint on 20.02.2024. Cursory statement of the petitioner/complainant (CW-1) was recorded on 24.02.2024. After recording of cursory statement of injured witness Iftikhar Ahmad (CW-3), cursory evidence was closed by the petitioner and the complaint was fixed for arguments on 15.04.2024. Perusal of impugned order transpires that besides statements of witnesses (CW-1 to CW-3), the petitioner tendered application moved by her to the SHO for registration of FIR (Mark-A), attested copy of medico legal examination certificate of injured Iftikhar Ahmad (Mark-B) and postmortem examination report of deceased (Mark-C) but while passing the impugned order on

16.05.2024, the learned court below discussed the facts not available on record of instant case. For ease and reference relevant excerpt from the impugned order is reproduced hereunder: -

“3. Perusal of record shows that the complainant has leveled allegation regarding occurrence committed on 24.04.2023 at about 01:00 am (night) regarding which FIR No.756/23 u/s 302, 324, 34 PPC has already been registered at P.S Mansoorabad, Faisalabad in which husband of the complainant namely Iftikhar Ahmad is principal accused. Iftikhar Ahmad accused is produced in custody today in above mentioned FIR. In fact complainant wants to make a counter case against the complainant of FIR No.756/23 in shape of cross-version. Another complaint titled “Muhammad Usman Vs. Iftikhar Ahmad etc.” has also been fixed today in which learned counsel on behalf of the complainant Muhammad Usman has informed the court that in fact Iftikhar Ahmad is principal accused of the occurrence against whom an FIR has been registered and trial of case FIR No.756/23 is in progress. It is further argued that complainant had also filed application before learned Ex-Officio Justice of Peace u/s 22-A/22-B Cr.P.C for recording of cross-version in case FIR No.756/23 which has been dismissed by learned Ex-Officio Justice of Peace. Although accused Iftikhar Ahmad became injured during the occurrence and medico legal report is also availed on the record yet he had been declared guilty during investigation of the case. Furthermore, version of the complainant was also rejected by learned Ex-Officio Justice of Peace. As the matter has been investigated thoroughly and challan against the accused Iftikhar Ahmad has already been submitted and trial is in progress, therefore, this complaint seems to be an attempt to make a counter case against complainant party of FIR No.756/23.” (underlining for emphasis only)

The facts of other connected cases, known by the court, are not to be considered to decide the subject case unless the same are brought on record in due course of law. Moreover, above reproduced part of the impugned order also transpires that the learned court at preliminary stage allowed respondent No.3 to contest the subject complaint without summoning him formally. It is also to be kept in mind here that presence of Muhammad Usman, respondent No.3 “complainant of other case” and that of his counsel has not been

marked at the top of impugned order where the presence of counsel for petitioner/complainant only is marked. Hence, learned court while considering the facts of other connected cases not available in evidence of the case in hand has travelled beyond its jurisdiction in this regard.

4. Now coming to the merits of this case, it has been noticed that the witnesses (CW-1 to CW-3) consistently narrated the occurrence that allegedly took place on 24.04.2023 and the facts given by them prima facie, find support from medico legal examination certificate (Mark-B), postmortem examination certificate (Mark-C) and the application moved by the petitioner to the SHO mentioned supra. At this stage, the learned court below was expected to pass the order only in the light of facts narrated by the three witnesses and the evidence brought on record through the three documents produced by the petitioner/ complainant which in view of this Court reveals the availability of evidence/grounds sufficient to require the issuance of process against the proposed accused/respondents under Section 204 of the Code of Criminal Procedure, 1898 hence, this Criminal Revision is allowed, order impugned is set aside, learned trial court is directed to issue process against respondents No.2 to 6 and proceed with the trial in due course of law.

(Syed Shahbaz Ali Rizvi)

Judge

APPROVED FOR REPORTING:

Judge